

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 HOUSE BILL 3697

 By: Gise of the House

5 and

6 **Howard** of the Senate

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9
10 AS INTRODUCED

11 An Act relating to civil procedure; amending 12 O.S.
12 2021, Section 2012, which relates to defenses and
13 objections, when and how presented, and by pleading
14 or motion; modifying time within which a defendant
15 must serve an answer; and providing an effective
16 date.

16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. AMENDATORY 12 O.S. 2021, Section 2012, is
18 amended to read as follows:

19 Section 2012.

20 DEFENSES AND OBJECTIONS; WHEN AND HOW PRESENTED;

21 BY PLEADING OR MOTION

22 A. WHEN PRESENTED. 1. Unless a different time is prescribed
23 by law, a defendant shall serve an answer:

- 1 a. within ~~twenty (20)~~ thirty (30) days after the service
2 of the summons and petition upon the defendant,
3 b. within ~~twenty (20)~~ thirty (30) days after the service
4 of the summons and petition upon the defendant, or
5 within the last day for answering if applicable;
6 provided, a defendant may file a reservation of time
7 which shall extend the time to respond ~~twenty (20)~~
8 thirty (30) days from the last date for answering.
9 The filing of such a reservation of time waives
10 defenses of paragraphs 2, 3, 4, 5, 6, and 9 of
11 subsection B of this section.

12 2. A party served with a pleading stating a cross-claim against
13 that party shall serve an answer thereto within twenty (20) days
14 after the service upon the party.

15 3. The plaintiff shall serve a reply to a counterclaim in the
16 answer within twenty (20) days after service of the answer or, if a
17 reply is ordered by the court, within twenty (20) days after service
18 of the order, unless the order otherwise directs.

19 4. The party requesting a summons to be issued or filing a
20 counter-claim or cross-claim may elect to have the answer served
21 within thirty-five (35) days in lieu of the twenty (20) days set
22 forth in this section.

23 5. The service of a motion permitted under this section or a
24 motion for summary judgment alters these periods of time as follows:

1 if the court denies the motion or postpones its disposition until
2 the trial on the merits, the responsive pleading shall be served
3 within twenty (20) days after notice of the court's action, unless a
4 different time is fixed by order of the court.

5 B. HOW PRESENTED. Every defense, in law or fact, to a claim
6 for relief in any pleading, whether a claim, counterclaim, cross-
7 claim, or third-party claim, shall be asserted in the responsive
8 pleading thereto if one is required, except that the following
9 defenses may at the option of the pleader be made by motion:

- 10 1. Lack of jurisdiction over the subject matter;
- 11 2. Lack of jurisdiction over the person;
- 12 3. Improper venue;
- 13 4. Insufficiency of process;
- 14 5. Insufficiency of service of process;
- 15 6. Failure to state a claim upon which relief can be granted;
- 16 7. Failure to join a party under Section 2019 of this title;
- 17 8. Another action pending between the same parties for the same
18 claim;
- 19 9. Lack of capacity of a party to be sued; and
- 20 10. Lack of capacity of a party to sue.

21 A motion making any of these defenses shall be made before pleading
22 if a further pleading is permitted. No defense or objection is
23 waived by being joined with one or more other defenses or objections
24 in a responsive pleading or motion. If a pleading sets forth a

1 claim for relief to which the adverse party is not required to serve
2 a responsive pleading, the adverse party may assert at the trial any
3 defense in law or fact to that claim for relief. If, on a motion
4 asserting the defense numbered 6 of this subsection to dismiss for
5 failure of the pleading to state a claim upon which relief can be
6 granted, matters outside the pleading are presented to and not
7 excluded by the court, the motion shall be treated as one for
8 summary judgment and all parties shall be given reasonable
9 opportunity to present all material made pertinent to the motion by
10 the rules for summary judgment. A motion to dismiss for failure to
11 state a claim upon which relief can be granted shall separately
12 state each omission or defect in the petition, and a motion that
13 does not specify such defects or omissions shall be denied without a
14 hearing and the defendant shall answer within twenty (20) days after
15 notice of the court's action.

16 C. PRELIMINARY HEARINGS. The defenses specifically enumerated
17 in paragraphs 1 through 10 of subsection B of this section, whether
18 made in a pleading or by motion, and the motion to strike mentioned
19 in subsection D of this section shall be heard and determined before
20 trial on application of any party, unless the court orders that the
21 hearing and determination thereof be deferred until the trial. If
22 the court determines that venue is proper, the action shall not be
23 dismissed for improper venue as a result of the jury's verdict or
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1 the subsequent ruling of the court on a demurrer to the evidence or
2 a motion for a directed verdict.

3 D. MOTION TO STRIKE. Upon motion made by a party before
4 responding to a pleading or, if no responsive pleading is permitted
5 by this act, upon motion made by a party within twenty (20) days
6 after the service of the pleading upon the party or upon the court's
7 own initiative at any time, the court may order stricken from any
8 pleading any insufficient defense. If, on a motion to strike an
9 insufficient defense, matters outside the pleadings are presented to
10 and not excluded by the court, the motion shall be treated as one
11 for partial summary judgment and all parties shall be given
12 reasonable opportunity to present all materials made pertinent to
13 the motion by the rules for summary judgment.

14 E. CONSOLIDATION OF DEFENSES IN MOTION. A party who makes a
15 motion under this section may join with it any other motions herein
16 provided for and then available to the party. If a party makes a
17 motion under this section but omits therefrom any defense or
18 objection then available to the party which this section permits to
19 be raised by motion, the party shall not thereafter make a motion
20 based on the defense or objection so omitted, except a motion as
21 provided in paragraph 2 of subsection F of this section on the
22 grounds there stated. The court in its discretion may permit a
23 party to amend a motion by stating additional defenses or objections
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1 if an amendment is sought at least five (5) days before the hearing
2 on the motion.

3 F. WAIVER OR PRESERVATION OF CERTAIN DEFENSES.

4 1. A defense of lack of jurisdiction over the person, improper
5 venue, insufficiency of process, insufficiency of service of
6 process, failure to state a claim upon which relief can be granted,
7 or lack of capacity of a party to be sued is waived:

8 a. if omitted from a motion that raises any of the
9 defenses or objections which this section permits to
10 be raised by motion, or

11 b. if it is not made by motion and it is not included in
12 a responsive pleading or an amendment thereof
13 permitted by subsection A of Section 2015 of this
14 title to be made as a matter of course. A motion to
15 strike an insufficient defense is waived if not raised
16 as in subsection D of this section.

17 2. A defense of failure to join a party indispensable under
18 Section 2019 of this title may be made in any pleading permitted or
19 ordered under subsection A of Section 2007 of this title or at the
20 trial on the merits. A defense of another action pending between
21 the same parties for the same claim or a defense of lack of capacity
22 of a party to sue may be made in any pleading permitted or ordered
23 pursuant to the provisions of subsection A of Section 2007 of this
24 title or at the pretrial conference.

1 3. Whenever it appears by suggestion of the parties or
2 otherwise that the court lacks jurisdiction of the subject matter,
3 the court shall dismiss the action.

4 4. A waiver of the defense in paragraph 6 of subsection B of
5 this section does not preclude a later contention that a party is
6 not entitled to any relief as a matter of law, either by motion for
7 summary judgment, or by demurrer or motion at or after trial.

8 G. FINAL DISMISSAL ON FAILURE TO AMEND. On granting a motion
9 to dismiss a claim for relief, the court shall grant leave to amend
10 if the defect can be remedied and shall specify the time within
11 which an amended pleading shall be filed. If the amended pleading
12 is not filed within the time allowed, final judgment of dismissal
13 with prejudice shall be entered on motion except in cases of
14 excusable neglect. In such cases amendment shall be made by the
15 party in default within a time specified by the court for filing an
16 amended pleading. Within the time allowed by the court for filing
17 an amended pleading, a plaintiff may voluntarily dismiss the action
18 without prejudice.

19 SECTION 2. This act shall become effective November 1, 2026.
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21 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
22 OVERSIGHT, dated 03/03/2026 - DO PASS, As Coauthored.
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